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May 19, 2016					
FEDERAL MARITIME COMMISSION					

FEDERAL MARITIME COMMISSION

DOCKET NO. 15-11

IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV

v.

**MICHAEL HITRINOV a/k/a MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

**ORDER ENLARGING TIME TO FILE DOCUMENTS AND
REQUIRING FILING OF A VERIFIED ANSWER**

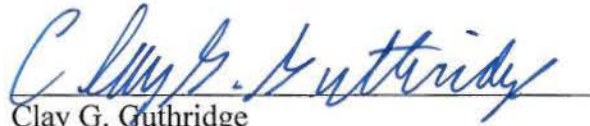
On May 2, 2016, respondents Empire United Lines (Empire) and Michael Hitrinov a/k/a Michael Khitrinov (Hitrinov) filed Respondents' Motion for Extension of Time Due to Illness and for Waiver of Time for Filing Motions. The motion sought extension of time to May 14, 2016, to file a motion to dismiss, Answer, response to the order to show cause, and shipping documents. The reason given for the request was that "Hitrinov has recently become too ill (including a significant fever) to participate in preparation of the above documents." (Respondents' Motion for Extension of Time Due to Illness and for Waiver of Time for Filing Motions at 1.)

On May 4, 2016, Hitrinov and Empire filed an Answer and a Response of Respondents to Order to Show Cause. On May 5, 2016, Hitrinov and Empire filed the shipping documents relating to one of the cars at issue in this proceeding and on May 11, 2016, filed the shipping documents for the other two cars at issue. As noted during the May 3, 2016, telephone status conference, there is no due date for filing a motion to dismiss.

The Answer and response to the show cause order were timely filed; therefore, the motion to enlarge the time to file the Answer and the response is moot. The time to file the shipping documents is enlarged to the dates on which they were filed.

Commission Rules require that answers be verified. 46 C.F.R. § 502.63(b)(2). Although Respondents' Answer was timely filed, it was not verified. Therefore, it is hereby

ORDERED that respondents Empire United Lines and Michael Hitrinov a/k/a Michael Khitrinov file a verified answer **FORTHWITH**. Compare Fed. R. Civ. P. 11(a) (“The court must strike an unsigned paper unless the omission is promptly corrected after being called to the attorney's or party's attention.”). The verified Answer may not change any of the allegations set forth in the unverified Answer filed on May 4, 2016.



Clay G. Guthridge
Administrative Law Judge